

24STCV19154 24STCV19154

County: los-angeles

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Case Number: 24STCV19154 Hearing Date: September 16, 2026 Dept: 512

HEARING DATE: Weds., September 16, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Mountains

Restoration Trust, Inc. v. City of COMP.

FILED: 07-31-24

Calabasas

CASE NUMBER: 24STCV19154

NOTICE: OK

PROCEEDINGS: MOTION

TO QUASH THIRD PARTY DEPOSITION SUBPOENAS

MOVING PARTY: Plaintiff Mountains Restoration Trust d/b/a

TreePeople Land Trust

RESP. PARTY: Defendant City of Calabasas

MOTION TO QUASH SUBPOENAS

(CCP § 1987.1)

TENTATIVE RULING:

Plaintiff Mountains

Restoration Trust d/b/a TreePeople Land Trust's Motion to Quash Deposition

Subpoenas for Production of Business Records Directed to YA Group; JS Held, Inc.; and CalPrivate Bank is GRANTED IN PART and DENIED IN PART.

The Motion is GRANTED as to the CalPrivate Bank subpoena and is otherwise DENIED.

Moving party is ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed on September 2, 2026 ☐
Late ☐ None

REPLY: Filed on September 9, 2026 ☐ Late ☐
☐ None

ANALYSIS:

I.
Background

On July 31, 2024, Plaintiff Mountains Restoration Trust, Inc. d/b/a TreePeople Land Trust ("Plaintiff") filed a Complaint for Declaratory Relief against Defendant City of Calabasas ("Defendant"). (Compl., p. 1.) The underlying action arises from disagreements between the parties regarding a Lease Management Agreement and Covenant Running with the Land pertaining to a "12-acre real property located at Old Topanga Canyon Road and Mulholand Highway known as Headwaters Corner [('Headwaters')]."

(Compl.)

On July 24, 2026, Plaintiff filed the instant Motion to Quash Deposition Subpoenas for Production of Business Records Directed to YA Group; JS Held, Inc.; and CalPrivate Bank (the “Motion”).

On September 2, 2026, Defendant filed an Opposition to the Motion.

On September 9, 2026, Plaintiff filed a Reply.

II.

Procedural
Issues

As an initial matter, the Court notes the Motion improperly combines three motions into one – a motion to quash deposition subpoena directed at YA Group; a motion to quash deposition subpoena directed at JS Held, Inc.; and a motion to quash deposition subpoena directed at CalPrivate Bank.

Additionally, the parties did not participate in an Informal Discovery Conference prior to Plaintiff filing the instant Motion.

III.

Legal
Standard

Code of Civil Procedure section 1987.1, subdivision (a) provides, in pertinent part, as follows:

If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it

upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.

(Code Civ. Proc., § 1987.1, subd.

(a).)

IV.

Discussion

Parties' Arguments

Plaintiff moves to quash three subpoenas for production of business records directed at three third parties – YA Group; JS Held, Inc.; and CalPrivate Bank. (See Motion.) In support of the Motion, Plaintiff provides copies of the subject subpoenas as well as Plaintiff's Responses to Defendant's Requests for Production ("RPDs") served on Defendant on January 28, 2025. (See Motion, Serova Decl., Exhs. 1-2.)

In Opposition, Defendant contends the Motion should be denied in its entirety on the following grounds: (1) the Motion is moot as to YA Group as YA Group has already responded to the subpoena at issue; (2) documents regarding repair estimates from JS Held, Inc. are relevant to the issues in dispute "because these third parties were engaged by Plaintiff to produce estimates of the costs of repair of the Bartelle House and vehicle bridge"; and (3) CalPrivate Bank's records regarding Plaintiff are relevant to Defendant's cross-complaint for accounting of insurance monies owed for repair of the improved structures on the Bartelle parcel. (Motion, pp. 4-8.) Defense counsel submits a declaration in support of the Opposition. (Opp., Bush Decl.)

In Reply, Plaintiff states the Opposition does not cure the defects in the subject subpoenas directed to JS Held and CalPrivate Bank. (Motion, p. 1.) As to JS Held, Plaintiff argues the subpoena should be quashed because the underlying claim serving as the basis for the subpoena request is meritless. (Motion, pp. 2-3.) Further, the documents subpoenaed from JS Held would be inadmissible at trial as hearsay, and Defendant already possesses the estimates at issue and thus may not acquire duplicative records from a third party. (See Reply, pp. 2-3.) As to CalPrivate

Bank, Plaintiff contends the subpoena is overbroad “because it seeks all statements and transaction records for TPLT’s bank account without limitation on the subject matter; that the City’s accounting cross-claim underlying the request fails as a matter of law because TPLT was not required to tender the insurance proceeds to the City and had no duty to account for them; and that TPLT already produced documents accounting for its receipt and use of the proceeds anyway, making the subpoena unnecessary....” (Reply, pp. 3-4.)

YA Group Subpoena

As to the subpoena directed to YA Group, the Court finds that the parties do not dispute that YA Group already provided answers to Plaintiff’s subject subpoena. (See Motion; Opp.; Reply.)

Thus, the Motion is DENIED AS MOOT as to the request to quash the subpoena directed to YA Group.

JS Held, Inc. Subpoena

As to the subpoena directed to JS Held, Inc., the subject subpoena requests the following documents:

1. All DOCUMENTS concerning the preparation of any cost estimate, valuation, reconstruction estimate or report prepared by YOU in 2016 for Mountains Restoration Trust, Inc. (hereinafter “MRT”) regarding the June 4, 2016 total structural loss at the property 3815 Old Topanga Road, Calabasas, CA 91302 (“the PROPERTY”).
2. All CORRESPONDENCE between YOU and MRT related to the work YOU performed for MRT in 2016 in connection with the PROPERTY.
3. All DOCUMENTS reflecting payments received by YOU related to the work YOU performed for MRT in 2016 in connection with the PROPERTY.

(Motion, Serova Decl., Exh. 1.)

Here, the Court finds the subpoena request is relevant and narrowly tailored to address Defendant’s contentions

that Plaintiff's repair obligations under the parties' agreement exceeded just merely a clean-up of the debris and more closely resembled a full rebuild. (See Opp., p. 6.)

Thus, the Motion is DENIED.

CalPrivate Bank Subpoena

As to the subpoena directed to CalPrivate Bank, the subject subpoena requests the following documents:

1. ALL bank statements for MRT/TPLT

Account Number 250449 from June 1, 2016 through the present.

2. ALL bank records for MRT/TPLT

Account Number 250449 showing any deposits from CITY OF CALABASAS from June 1, 2016 through the present.

3. ALL bank records for MRT/TPLT

Account Number 250449 showing any deposits from Chubb Insurance, or "Chubb", or "Chubb Ltd." from June 1, 2016 through the present.

4. Records of ALL deposits made by

MRT/TPLT in Account Number 250449 from June 1, 2016 through the present.

5. Records of ALL transactions made by

MRT/TPLT, Account Number 250449, from June 1, 2016 through the present.

(Motion, Serova Decl., Exh. 1.)

Here, the Court finds these requests are overly broad in scope. While the Court acknowledges there is some relevance to the subpoenas' requests as they seek information pertaining to the first amended Cross-Complaint's claim for accounting, the subpoenas effectively ask for all communications and documents in CalPrivate Bank's possession relating to Plaintiff and/or Plaintiff and the instant litigation. Given the sweeping nature of these requests, the Court finds the CalPrivate Bank subpoena is overly broad and thus unenforceable. (See e.g., *Calcor Space Facility, Inc. v. Sup. Ct. (Thiem Indus., Inc.)* (1997) 53 Cal.App.4th 216, 222-223.)

To the extent Defendant wishes to gather information as to the financial accounts and payments made by Plaintiff in efforts to repair the Bartell house (see Opp., pp. 6-7), such information would be most appropriately, and more understandably, sought in a post-judgment phase of the action. However, this is not the current procedural posture of the case.

Further, the parties do not dispute that Defendant has other evidence addressing similar information as that sought in the subject bank records.

Thus, the Motion is GRANTED as to the CalPrivate Bank subpoena.

Miscellaneous

Insofar as the parties dispute meet and confer efforts regarding the instant Motion, the Court finds that, while meeting and conferring tends to always be beneficial, it is not required under Code of Civil Procedure section 1987.1.

To the extent the parties argue the merits of underlying claims in the FAC or FACC as grounds to either deny or grant the Motion, the Court finds these contentions improperly raised in the instant Motion. The Court's role in ruling on a motion to quash deposition subpoena is not to delve into and adjudicate the merits of the underlying action or the face of a pleading – such contentions are raised in other motions, such as those that address the sufficiency of the allegations in a pleading and/or dispositive motions.

V.

Conclusion
& Order

For the foregoing reasons,
Plaintiff Mountains Restoration Trust d/b/a TreePeople Land Trust's Motion to Quash Deposition Subpoenas for Production of Business Records Directed to YA Group; JS Held, Inc.; and CalPrivate Bank is GRANTED IN PART and DENIED IN PART.

The Motion is GRANTED as
to the CalPrivate Bank subpoena and is otherwise DENIED.

Moving party is ordered to
give notice.